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Congress in respecting and tolerating different views, endeavoring to achieve inclusivity and nondiscrimination, and recognizing the important role religion plays in the lives of many Americans, they are likewise constitutional. Pp. 60–63.

JUSTICE THOMAS, agreeing that the Bladensburg Cross is constitutional, concluded:

(a) The text and history of the Clause—which reads “Congress shall make no law respecting an establishment of religion”—suggest that it should not be incorporated against the States. When the Court incorporated the Clause in *Everson v. Board of Ed. of Ewing*, 330 U. S. 1, 15, it apparently did not consider that an incorporated Establishment Clause would prohibit exactly what the text of the Clause seeks to protect: state establishments of religion. The appropriate question is whether any longstanding right of citizenship restrains the States in the establishment context. Further confounding the incorporation question is the fact that the First Amendment by its terms applies only to “law[s]” enacted by “Congress.” Pp. 73–75.

(b) Even if the Clause applied to state and local governments in some fashion, “[t]he mere presence of the monument along [respondents’] path involves no [actual legal] coercion,” the *sine qua non* of an establishment of religion. *Van Orden v. Perry*, 545 U. S. 677, 694 (opinion of THOMAS, J.). The plaintiff claiming an unconstitutional establishment of religion must demonstrate that he was actually coerced by government conduct that shares the characteristics of an establishment as understood at the founding. Respondents have not demonstrated that maintaining a religious display on public property shares any of the historical characteristics of an establishment of religion. *Town of Greece v. Galloway*, 572 U. S. 565, 608 (same). The Bladensburg Cross is constitutional even though the cross has religious significance. Religious displays or speech need not be limited to those considered nonsectarian. Insisting otherwise is inconsistent with this Nation’s history and traditions, *id.*, at 578–580 (majority opinion), and would force the courts “to act as supervisors and censors of religious speech,” *id.*, at 581. Pp. 75–77.

(c) The plurality rightly rejects the relevance of the test set forth in *Lemon v. Kurtzman*, 403 U. S. 602, 612–613, to claims like this one, which involve religiously expressive monuments, symbols, displays, and similar practices, but JUSTICE THOMAS would take the logical next step and overrule the *Lemon* test in all contexts. The test has no basis in the original meaning of the Constitution; it has “been manipulated to fit whatever result the Court aimed to achieve,” *McCreary County v. American Civil Liberties Union of Ky.*, 545 U. S. 844, 900 (Scalia, J., dissenting); and it continues to cause enormous confusion in the States and the lower courts. Pp. 78–79.

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JUSTICE GORSUCH, joined by JUSTICE THOMAS, concludes that a suit like this one should be dismissed for lack of standing. Pp. 79–89.

(a) The American Humanist Association claims that its members come into regular, unwelcome contact with the Bladensburg Cross when they drive through the area, but this “offended observer” theory of standing has no basis in law. To establish standing to sue consistent with the Constitution, a plaintiff must show: (1) injury-in-fact, (2) causation, and (3) redressability. And the injury-in-fact must be “concrete and particularized.” *Lujan v. Defenders of Wildlife*, 504 U. S. 555, 560. This Court has already rejected the notion that offense alone qualifies as a “concrete and particularized” injury sufficient to confer standing, *Diamond v. Charles*, 476 U. S. 54, 62, and it has done so in the context of the Establishment Clause itself, see *Valley Forge Christian College v. Americans United for Separation of Church and State, Inc.*, 454 U. S. 464. Offended observer standing is deeply inconsistent, too, with many other longstanding principles and precedents, including the rule that “‘generalized grievances’ about the conduct of Government” are insufficient to confer standing to sue, *Schlesinger v. Reservists Comm. to Stop the War*, 418 U. S. 208, 217, and “the rule that a party ‘generally must assert his own legal rights and interests,’” not those “‘of third parties,’” *Kowalski v. Tesmer*, 543 U. S. 125, 129. Pp. 79–83.

(b) Lower courts invented offended observer standing for Establishment Clause cases in response to *Lemon v. Kurtzman*, 403 U. S. 602, reasoning that if the Establishment Clause forbids anything that a reasonable observer would view as an endorsement of religion, then such an observer must be able to sue. *Lemon*, however, was a misadventure, and the Court today relies on a more modest, historically sensitive approach, interpreting the Establishment Clause with reference to historical practices and understandings. The monument here is clearly constitutional in light of the Nation’s traditions. Although the plurality does not say it in as many words, the message of today’s decision for the lower courts must be this: whether a monument, symbol, or practice is old or new, apply *Town of Greece v. Galloway*, 572 U. S. 565, not *Lemon*, because what matters when it comes to assessing a monument, symbol, or practice is not its age but its compliance with ageless principles. Pp. 83–87.

(c) With *Lemon* now shelved, little excuse will remain for the anomaly of offended observer standing, and the gaping hole it tore in standing doctrine in the courts of appeals should now begin to close. Abandoning offended observer standing will mean only a return to the usual demands of Article III, requiring a real controversy with real impact on real persons to make a federal case out of it. Pp. 87–88.

ALITO, J., announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–B, II–C, III, and IV, in which

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ROBERTS, C. J., and BREYER, KAGAN, and KAVANAUGH, JJ., joined, and an opinion with respect to Parts II–A and II–D, in which ROBERTS, C. J., and BREYER and KAVANAUGH, JJ., joined. BREYER, J., filed a concurring opinion, in which KAGAN, J., joined, *post*, p. 66. KAVANAUGH, J., filed a concurring opinion, *post*, p. 68. KAGAN, J., filed an opinion concurring in part, *post*, p. 73. THOMAS, J., filed an opinion concurring in the judgment, *post*, p. 73. GORSUCH, J., filed an opinion concurring in the judgment, in which THOMAS, J., joined, *post*, p. 79. GINSBURG, J., filed a dissenting opinion, in which SOTOMAYOR, J., joined, *post*, p. 89.

Neal Kumar Katyal argued the cause for petitioner in No. 18–18. With him on the briefs were *Mitchell P. Reich*, *Adrian R. Gardner*, *William C. Dickerson*, and *Tracey A. Harvin*.

Michael A. Carvin argued the cause for petitioners in No. 17–1717. With him on the briefs were *Christopher DiPompeo*, *Kelly J. Shackelford*, *Hiram S. Sasser III*, *Kenneth A. Klukowski*, *Roger L. Byron*, and *Michael D. Berry*.

Acting Solicitor General Wall argued the cause for the United States as *amicus curiae* urging reversal in both cases. With him on the brief were *Assistant Attorney General Clark*, *Deputy Solicitor General Kneedler*, *Frederick Liu*, *Andrew C. Mergen*, *Lowell V. Sturgill, Jr.*, and *Joan M. Pepin*.

Monica L. Miller argued the cause and filed briefs for respondents in both cases.†

†Briefs of *amici curiae* urging reversal in No. 17–1717 were filed for CatholicVote.org Education Fund by *Scott W. Gaylord*; for the Foundation for Moral Law by *John Eidsmoe*; and for Public Advocate of the United States et al. by *Herbert W. Titus*, *William J. Olson*, *Jeremiah L. Morgan*, *Joseph W. Miller*, and *J. Mark Brewer*.

A brief of *amicus curiae* urging reversal in No. 18–18 was filed for the State of Maryland by *Brian E. Frosh*, Attorney General of Maryland, and *John R. Grimm*, Assistant Attorney General.

Briefs of *amici curiae* urging reversal were filed in both cases for the State of West Virginia et al. by *Patrick Morrissey*, Attorney General of West Virginia, *Lindsay S. See*, Solicitor General, and *Zachary A. Vigilanco*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas,

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JUSTICE ALITO announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–B, II–C, III, and IV, and an opinion with respect to Parts II–A and II–D, in which THE CHIEF JUSTICE, JUSTICE BREYER, and JUSTICE KAVANAUGH join.

Since 1925, the Bladensburg Peace Cross (Cross) has stood as a tribute to 49 area soldiers who gave their lives in the

Cynthia H. Coffman of Colorado, *Pamela J. Bondi* of Florida, *Christopher M. Carr* of Georgia, *Lawrence G. Wasden* of Idaho, *Curtis T. Hill, Jr.*, of Indiana, *Derek Schmidt* of Kansas, *Andy Beshear* of Kentucky, *Jeff Martin Landry* of Louisiana, *Bill Schuette* of Michigan, *Jim Hood* of Mississippi, *Josh Hawley* of Missouri, *Tim Fox* of Montana, *Doug Peterson* of Nebraska, *Wayne Stenehjem* of North Dakota, *Michael DeWine* of Ohio, *Mike Hunter* of Oklahoma, *Peter F. Kilmartin* of Rhode Island, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Herbert H. Slatery III* of Tennessee, *Ken Paxton* of Texas, *Sean Reyes* of Utah, *Mark R. Herring* of Virginia, *Brad Schimel* of Wisconsin, and *Peter K. Michael* of Wyoming; for Taos, New Mexico, by *R. Timothy McCrum* and *Elizabeth B. Dawson*; for American Association of Christian Schools et al. by *William Wagner*, *Erin Elizabeth Mersino*, and *Katherine L. Henry*; for American Center for Law & Justice et al. by *Jay Alan Sekulow*, *Stuart J. Roth*, *Walter M. Weber*, *Jordan Sekulow*, *Francis J. Manion*, *Geoffrey R. Surtees*, *Edward L. White III*, and *Erik M. Zimmerman*; for the American Civil Rights Union by *John J. Park, Jr.*; for the Becket Fund for Religious Liberty by *Michael W. McConnell*, *Luke W. Goodrich*, and *Eric C. Rassbach*; for the Cato Institute by *Ilya Shapiro*; for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for the Citizens United Foundation et al. by *Matthew D. McGill* and *Michael Boos*; for Family Members of Soldiers Named on the Peace Cross by *Zachary G. Parks*; for the Family Research Council by *Travis Weber*; for the Islam & Religious Freedom Action Team of the Religious Freedom Institute by *Miles E. Coleman*; for the Jewish Coalition for Religious Liberty by *Daniel P. Kearney, Jr.*, and *Howard Slugh*; for Judicial Watch, Inc., by *Meredith L. Di Liberto* and *James F. Peterson*; for the Justice and Freedom Fund by *James L. Hirszen* and *Deborah J. Dewart*; for Liberty Council by *Mary E. McAlister*, *Matthew D. Staver*, *Anita L. Staver*, and *Horatio G. Mihet*; for Maryland Elected Officials et al. by *Thomas R. McCarthy* and *Jeffrey M. Harris*; for Medal of Honor Recipients by *Brian H. Pandya* and *Megan L. Brown*; for the Military Order of the Purple Heart by *Matthew J. Dowd* and *William R. Suhre*; for the National Association

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First World War. Eighty-nine years after the dedication of the Cross, respondents filed this lawsuit, claiming that they are offended by the sight of the memorial on public land and that its presence there and the expenditure of public funds to maintain it violate the Establishment Clause of the First Amendment. To remedy this violation, they asked a federal

of Counties et al. by *Paul J. Zidlicky, Lisa Soronen, and Charles W. Thompson, Jr.*; for the National Jewish Commission on Law and Public Affairs et al. by *Nathan Lewin, Alyza D. Lewin, and Dennis Rapps*; for Religious Denominations et al. by *Gene C. Schaerr, Erik S. Jaffe, Michael T. Worley, Alexander Dushku, and R. Shawn Gunnarson*; for Retired Generals et al. by *Aaron M. Streett and Edwin Meese III*; for The Rutherford Institute by *Michael J. Lockerby and John W. Whitehead*; for the Thomas More Law Center by *Erin J. Kuenzig and Richard F. Thompson*; for the Utah Highway Patrol Association by *Allyson N. Ho, Bradley G. Hubbard, Katherine C. Yarger, and Frank D. Mylar*; for Various Professors by *Stephen C. Piepgrass and Ryan J. Strasser*; for Veterans in Defense of Liberty et al. by *Frederick W. Claybrook, Jr., Steven W. Fitschen, and James A. Davids*; for Veterans of Foreign Wars of the United States et al. by *Paul D. Clement and Erin E. Murphy*; for the Wisconsin Institute for Law & Liberty by *Richard M. Esenberg*; for Maj. Gen. Patrick Brady et al. by *H. Woodruff Turner, Kristen K. Waggoner, John J. Bursch, David A. Cortman, Jonathan A. Scruggs, Rory T. Gray, Brett B. Harvey, and Nathaniel Bruno*; for Walter Dellinger et al. by *Martin S. Lederman*; for Lieut. Col. Kamal S. Kalsi by *Tejinder Singh*; and for 84 U. S. Senators et al. by *Charles J. Cooper, David H. Thompson, and Haley N. Proctor*.

Briefs of *amici curiae* urging affirmance were filed in both cases for the Baptist Joint Committee for Religious Liberty et al. by *Douglas Laycock, K. Hollyn Hollman, and Jennifer L. Hawks*; for the Freedom From Religion Foundation et al. by *Robert M. Loeb and Gregory M. Lipper*; for Historians et al. by *Charles A. Rothfeld, Andrew J. Pincus, Paul W. Hughes, Michael B. Kimberly, and Steven K. Green*; for the Jewish War Veterans of the United States of America, Inc., by *Harvey Weiner, David A. Strauss, Sarah M. Konsky, and Matthew S. Hellman*; for Law Professors by *Christopher C. Lund*; for the Military Religious Freedom Foundation et al. by *Sarah M. Shalf*; for Muslim Advocates by *R. Stanton Jones, Andrew T. Tutt, Johnathan J. Smith, and Sirine Shebaya*; and for Religious and Civil-Rights Organizations by *Richard B. Katskee, Daniel Mach, Heather L. Weaver, Steven M. Freeman, Elliot M. Mincberg, Diane Laviolette, Deborah A. Jeon, and Jeffrey I. Pasek*.

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court to order the relocation or demolition of the Cross or at least the removal of its arms. The Court of Appeals for the Fourth Circuit agreed that the memorial is unconstitutional and remanded for a determination of the proper remedy. We now reverse.

Although the cross has long been a preeminent Christian symbol, its use in the Bladensburg memorial has a special significance. After the First World War, the picture of row after row of plain white crosses marking the overseas graves of soldiers who had lost their lives in that horrible conflict was emblazoned on the minds of Americans at home, and the adoption of the cross as the Bladensburg memorial must be viewed in that historical context. For nearly a century, the Bladensburg Cross has expressed the community's grief at the loss of the young men who perished, its thanks for their sacrifice, and its dedication to the ideals for which they fought. It has become a prominent community landmark, and its removal or radical alteration at this date would be seen by many not as a neutral act but as the manifestation of "a hostility toward religion that has no place in our Establishment Clause traditions." *Van Orden v. Perry*, 545 U. S. 677, 704 (2005) (BREYER, J., concurring in judgment). And contrary to respondents' intimations, there is no evidence of discriminatory intent in the selection of the design of the memorial or the decision of a Maryland commission to maintain it. The Religion Clauses of the Constitution aim to foster a society in which people of all beliefs can live together harmoniously, and the presence of the Bladensburg Cross on the land where it has stood for so many years is fully consistent with that aim.

I

A

The cross came into widespread use as a symbol of Christianity by the fourth century,¹ and it retains that mean-

¹B. Longenecker, *The Cross Before Constantine: The Early Life of a Christian Symbol* 2 (2015).

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ing today. But there are many contexts in which the symbol has also taken on a secular meaning. Indeed, there are instances in which its message is now almost entirely secular.

A cross appears as part of many registered trademarks held by businesses and secular organizations, including Blue Cross Blue Shield, the Bayer Group, and some Johnson & Johnson products.² Many of these marks relate to health care, and it is likely that the association of the cross with healing had a religious origin. But the current use of these marks is indisputably secular.

The familiar symbol of the Red Cross—a red cross on a white background—shows how the meaning of a symbol that was originally religious can be transformed. The International Committee of the Red Cross (ICRC) selected that symbol in 1863 because it was thought to call to mind the flag of Switzerland, a country widely known for its neutrality.³ The Swiss flag consists of a white cross on a red background. In an effort to invoke the message associated with that flag, the ICRC copied its design with the colors inverted. Thus, the ICRC selected this symbol for an essentially secular reason, and the current secular message of the symbol is shown by its use today in nations with only tiny Christian populations.⁴ But the cross was originally chosen

²See Blue Cross, Blue Shield, <https://www.bcbs.com>; The Bayer Group, The Bayer Cross—Logo and Landmark, <https://www.bayer.com/en/logo-history.aspx>; Band-Aid Brand Adhesive Bandages, Johnson & Johnson All Purpose First Aid Kit, <https://www.band-aid.com/products/first-aid-kits/all-purpose> (all Internet materials as last visited June 18, 2019).

³International Committee of the Red Cross, The History of the Emblems, <https://www.icrc.org/en/doc/resources/documents/misc/emblem-history.htm>.

⁴For example, the Indian and Japanese affiliates of the ICRC and Red Crescent Societies use the symbol of the cross. See Indian Red Cross Society, <https://www.indianredcross.org/ircs/index.php>; Japanese Red Cross Society, <http://www.jrc.or.jp/english/>.

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for the Swiss flag for religious reasons.⁵ So an image that began as an expression of faith was transformed.

The image used in the Bladensburg memorial—a plain Latin cross⁶—also took on new meaning after World War I. “During and immediately after the war, the army marked soldiers’ graves with temporary wooden crosses or Stars of David”—a departure from the prior practice of marking graves in American military cemeteries with uniform rectangular slabs. G. Piehler, *Remembering War the American Way* 101 (1995); App. 1143. The vast majority of these grave markers consisted of crosses,⁷ and thus when Americans saw photographs of these cemeteries, what struck them were rows and rows of plain white crosses. As a result, the image of a simple white cross “developed into a ‘central symbol’” of the conflict. *Ibid.* Contemporary literature, poetry, and art reflected this powerful imagery. See Brief for Veterans of Foreign Wars of the United States et al. as *Amici Curiae* 10–16. Perhaps most famously, John Mc-

⁵ See “Flag of Switzerland,” Britannica Academic, <https://academic.eb.com/levels/collegiate/article/flag-of-Switzerland/93966>.

⁶ The Latin form of the cross “has a longer upright than crossbar. The intersection of the two is usually such that the upper and the two horizontal arms are all of about equal length, but the lower arm is conspicuously longer.” G. Ferguson, *Signs & Symbols in Christian Art* 294 (1954). See also Webster’s Third New International Dictionary 1276 (1981) (“latin cross, n.”: “a figure of a cross having a long upright shaft and a shorter crossbar traversing it above the middle”).

⁷ Of the roughly 116,000 casualties the United States suffered in World War I, some 3,500 were Jewish soldiers. J. Fredman & L. Falk, *Jews in American Wars* 100 (5th ed. 1954) (Fredman & Falk). In the congressional hearings involving the appropriate grave markers for those buried abroad, one Representative stated that approximately 1,600 of these Jewish soldiers were buried in overseas graves marked by Stars of David. See Hearings before the Committee on Military Affairs, 68th Cong., 1st Sess., 3 (1924). That would constitute about 5.2% of the 30,973 graves in American World War I cemeteries abroad. See American Battle Monuments Commission (ABMC), *World War I Burials and Memorializations*, <https://www.abmc.gov/node/1273>.

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Crae's poem, *In Flanders Fields*, began with these memorable lines:

“In Flanders fields the poppies blow
Between the crosses, row on row.”

In Flanders Fields and *Other Poems* 3 (G. P. Putnam's Sons ed. 1919). The poem was enormously popular. See P. Fussell, *The Great War and Modern Memory* 248–249 (1975). A 1921 *New York Times* article quoted a description of McCrae's composition as “‘the poem of the army’” and “‘of all those who understand the meaning of the great conflict.’”⁸ The image of “the crosses, row on row,” stuck in people's minds, and even today for those who view World War I cemeteries in Europe, the image is arresting.⁹

After the 1918 armistice, the War Department announced plans to replace the wooden crosses and Stars of David with uniform marble slabs like those previously used in American military cemeteries. App. 1146. But the public outcry against that proposal was swift and fierce. Many organizations, including the American War Mothers, a nonsectarian group founded in 1917, urged the Department to retain the design of the temporary markers. *Id.*, at 1146–1147. When the American Battle Monuments Commission took over the project of designing the headstones, it responded to this public sentiment by opting to replace the wooden crosses and Stars of David with marble versions of those symbols. *Id.*, at 1144. A Member of Congress likewise introduced a resolution noting that “these wooden symbols have, during and since the World War, been regarded as emblematic of the great sacrifices which that war entailed, have been so treated by poets and artists and have become peculiarly and inseparably associated in the thought of surviving relatives and comrades and of the Nation with these World War graves.”

⁸“*In Flanders Fields*,” *N. Y. Times*, Dec. 18, 1921, p. 96.

⁹See ABMC, *Cemeteries and Memorials*, <https://www.abmc.gov/cemeteries-memorials>.

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H. Res. 15, 68th Cong., 1 (1924); App. 1163–1164. This national debate and its outcome confirmed the cross’s widespread resonance as a symbol of sacrifice in the war.

B

Recognition of the cross’s symbolism extended to local communities across the country. In late 1918, residents of Prince George’s County, Maryland, formed a committee for the purpose of erecting a memorial for the county’s fallen soldiers. App. 988–989, 1014. Among the committee’s members were the mothers of 10 deceased soldiers. *Id.*, at 989. The committee decided that the memorial should be a cross and hired sculptor and architect John Joseph Earley to design it. Although we do not know precisely why the committee chose the cross, it is unsurprising that the committee—and many others commemorating World War I¹⁰—adopted a symbol so widely associated with that wrenching event.

After selecting the design, the committee turned to the task of financing the project. The committee held fundraising events in the community and invited donations, no matter the size, with a form that read:

“We, the citizens of Maryland, trusting in God, the Supreme Ruler of the Universe, Pledge Faith in our Brothers who gave their all in the World War to make [the] World Safe for Democracy. Their Mortal Bodies have turned to dust, but their spirit Lives to guide us through Life in the way of Godliness, Justice and Liberty.

¹⁰ Other World War I memorials that incorporate the cross include the Argonne Cross and the Canadian Cross of Sacrifice in Arlington National Cemetery; the Wayside Cross in Towson, Maryland; the Wayside Cross in New Canaan, Connecticut; the Troop K Georgia Cavalry War Memorial Front in Augusta, Georgia; the Chestnut Hill and Mt. Airy World War Memorial in Philadelphia, Pennsylvania; and the Great War for Democracy Memorial in Waterbury, Connecticut.

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“With our Motto, ‘One God, One Country, and One Flag’ We contribute to this Memorial Cross Commemorating the Memory of those who have not Died in Vain.” *Id.*, at 1251.

Many of those who responded were local residents who gave small amounts: Donations of 25 cents to 1 dollar were the most common. *Id.*, at 1014. Local businesses and political leaders assisted in this effort. *Id.*, at 1014, 1243. In writing to thank United States Senator John Walter Smith for his donation, committee treasurer Mrs. Martin Redman explained that “[t]he chief reason I feel as deeply in this matter [is that] my son, [Wm.] F. Redman, lost his life in France and because of that I feel that our memorial cross is, in a way, his grave stone.” *Id.*, at 1244.

The Cross was to stand at the terminus of another World War I memorial—the National Defense Highway, which connects Washington to Annapolis. The community gathered for a joint groundbreaking ceremony for both memorials on September 28, 1919; the mother of the first Prince George’s County resident killed in France broke ground for the Cross. *Id.*, at 910. By 1922, however, the committee had run out of funds, and progress on the Cross had stalled. The local post of the American Legion took over the project, and the monument was finished in 1925.

The completed monument is a 32-foot-tall Latin cross that sits on a large pedestal. The American Legion’s emblem is displayed at its center, and the words “Valor,” “Endurance,” “Courage,” and “Devotion” are inscribed at its base, one on each of the four faces. The pedestal also features a 9- by 2.5-foot bronze plaque explaining that the monument is “Dedicated to the heroes of Prince George’s County, Maryland who lost their lives in the Great War for the liberty of the world.” *Id.*, at 915 (capitalization omitted). The plaque lists the names of 49 local men, both Black and White, who died in the war. It identifies the dates of American involvement, and quotes President Woodrow Wilson’s request for a

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declaration of war: “‘The right is more precious than peace. We shall fight for the things we have always carried nearest our hearts. To such a task we dedicate our lives.’” *Ibid.*

At the dedication ceremony, a local Catholic priest offered an invocation. *Id.*, at 217–218. United States Representative Stephen W. Gambrill delivered the keynote address, honoring the “‘men of Prince George’s County’” who “‘fought for the sacred right of all to live in peace and security.’” *Id.*, at 1372. He encouraged the community to look to the “‘token of this cross, symbolic of Calvary,’” to “‘keep fresh the memory of our boys who died for a righteous cause.’” *Ibid.* The ceremony closed with a benediction offered by a Baptist pastor.

Since its dedication, the Cross has served as the site of patriotic events honoring veterans, including gatherings on Veterans Day, Memorial Day, and Independence Day. Like the dedication itself, these events have typically included an invocation, a keynote speaker, and a benediction. *Id.*, at 182, 319–323. Over the years, memorials honoring the veterans of other conflicts have been added to the surrounding area, which is now known as Veterans Memorial Park. These include a World War II Honor Scroll; a Pearl Harbor memorial; a Korea-Vietnam veterans memorial; a September 11 garden; a War of 1812 memorial; and two recently added 38-foot-tall markers depicting British and American soldiers in the Battle of Bladensburg. *Id.*, at 891–903, 1530. Because the Cross is located on a traffic island with limited space, the closest of these other monuments is about 200 feet away in a park across the road. *Id.*, at 36, 44.

As the area around the Cross developed, the monument came to be at the center of a busy intersection. In 1961, the Maryland-National Capital Park and Planning Commission (Commission) acquired the Cross and the land on which it sits in order to preserve the monument and address traffic-

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safety concerns.¹¹ *Id.*, at 420–421, 1384–1387. The American Legion reserved the right to continue using the memorial to host a variety of ceremonies, including events in memory of departed veterans. *Id.*, at 1387. Over the next five decades, the Commission spent approximately \$117,000 to maintain and preserve the monument. In 2008, it budgeted an additional \$100,000 for renovations and repairs to the Cross.¹²

C

In 2012, nearly 90 years after the Cross was dedicated and more than 50 years after the Commission acquired it, the American Humanist Association (AHA) lodged a complaint with the Commission. The complaint alleged that the Cross’s presence on public land and the Commission’s maintenance of the memorial violate the Establishment Clause of

¹¹There is some ambiguity as to whether the American Legion ever owned the land on which the Cross rests. When the Legion took over the Cross, the town of Bladensburg passed a resolution “assign[ing] and grant[ing] to the said Snyder-Farmer Post #3, American Legion, that parcel of ground upon which the cross now stands and that part necessary to complet[e] the park around said cross, to the perpetual care of the Snyder-Farmer Post #3 as long as it is in existence, and should the said Post go out of existence the plot to revert to the Town of Bladensburg, together with the cross and its surroundings.” App. 65. In 1935, a statute authorized the State Roads Commission of Maryland to “investigate the ownership and possessory rights” of the tract surrounding the Cross and to “acquire the same by purchase or condemnation.” *Id.*, at 421. It appears that in 1957, a court determined that it was necessary for the State to condemn the property. *Id.*, at 1377–1379. The State Roads Commission thereafter conveyed the property to the Commission in 1960. *Id.*, at 1380, 1382. To resolve any ambiguities, in 1961, the local American Legion post “transfer[ed] and assign[ed] to [the Commission] all its right, title and interest in and to the Peace Cross, also originally known as the Memorial Cross, and the tract upon which it is located.” *Id.*, at 1387. At least by 1961, then, both the land and the Cross were publicly owned.

¹²Of the budgeted \$100,000, the Commission had spent only \$5,000 as of 2015. The Commission put off additional spending and repairs in light of this lawsuit. *Id.*, at 823.

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the First Amendment. *Id.*, at 1443–1451. The AHA, along with three residents of Washington, D. C., and Maryland, also sued the Commission in the District Court for the District of Maryland, making the same claim. The AHA sought declaratory and injunctive relief requiring “removal or demolition of the Cross, or removal of the arms from the Cross to form a non-religious slab or obelisk.” 874 F. 3d 195, 202, n. 7 (CA4 2017) (internal quotation marks omitted). The American Legion intervened to defend the Cross.

The District Court granted summary judgment for the Commission and the American Legion. The Cross, the District Court held, satisfies both the three-pronged test announced in *Lemon v. Kurtzman*, 403 U. S. 602 (1971), and the analysis applied by JUSTICE BREYER in upholding the Ten Commandments monument at issue in *Van Orden v. Perry*, 545 U. S. 677. Under the *Lemon* test, a court must ask whether a challenged government action (1) has a secular purpose; (2) has a “principal or primary effect” that “neither advances nor inhibits religion”; and (3) does not foster “an excessive government entanglement with religion,” 403 U. S., at 612–613 (internal quotation marks omitted). Applying that test, the District Court determined that the Commission had secular purposes for acquiring and maintaining the Cross—namely, to commemorate World War I and to ensure traffic safety. The court also found that a reasonable observer aware of the Cross’s history, setting, and secular elements “would not view the Monument as having the effect of impermissibly endorsing religion.” 147 F. Supp. 3d 373, 387 (Md. 2015). Nor, according to the court, did the Commission’s maintenance of the memorial create the kind of “continued and repeated government involvement with religion” that would constitute an excessive entanglement. *Ibid.* (internal quotation marks omitted; emphasis deleted). Finally, in light of the factors that informed its analysis of *Lemon*’s “effects” prong, the court concluded that the Cross is

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constitutional under JUSTICE BREYER's approach in *Van Orden*. 147 F. Supp. 3d, at 388–390.

A divided panel of the Court of Appeals for the Fourth Circuit reversed. The majority relied primarily on the *Lemon* test but also took cognizance of JUSTICE BREYER's *Van Orden* concurrence. While recognizing that the Commission acted for a secular purpose, the court held that the Bladensburg Cross failed *Lemon*'s "effects" prong because a reasonable observer would view the Commission's ownership and maintenance of the monument as an endorsement of Christianity. The court emphasized the cross's "inherent religious meaning" as the "'preeminent symbol of Christianity.'" 874 F. 3d, at 206–207. Although conceding that the monument had several "secular elements," the court asserted that they were "overshadow[ed]" by the Cross's size and Christian connection—especially because the Cross's location and condition would make it difficult for "passers-by" to "read" or otherwise "examine" the plaque and American Legion emblem. *Id.*, at 209–210. The court rejected as "too simplistic" an argument defending the Cross's constitutionality on the basis of its 90-year history, suggesting that "[p]erhaps the longer a violation persists, the greater the affront to those offended." *Id.*, at 208. In the alternative, the court concluded, the Commission had become excessively entangled with religion by keeping a display that "aggrandizes the Latin cross" and by spending more than *de minimis* public funds to maintain it. *Id.*, at 211–212.

Chief Judge Gregory dissented in relevant part, contending that the majority misapplied the "effects" test by failing to give adequate consideration to the Cross's "physical setting, history, and usage." *Id.*, at 218 (opinion concurring in part and dissenting in part). He also disputed the majority's excessive-entanglement analysis, noting that the Commission's maintenance of the Cross was not the kind of "comprehensive, discriminating, and continuing state sur-

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veillance” of religion that *Lemon* was concerned to rule out. 874 F. 3d, at 221 (internal quotation marks omitted).

The Fourth Circuit denied rehearing en banc over dissents by Chief Judge Gregory, Judge Wilkinson, and Judge Niemeyer. 891 F. 3d 117 (2018). The Commission and the American Legion each petitioned for certiorari. We granted the petitions and consolidated them for argument. 586 U.S. 985 (2016).

II

A

The Establishment Clause of the First Amendment provides that “Congress shall make no law respecting an establishment of religion.” While the concept of a formally established church is straightforward, pinning down the meaning of a “law respecting an establishment of religion” has proved to be a vexing problem. Prior to the Court’s decision in *Everson v. Board of Ed. of Ewing*, 330 U.S. 1 (1947), the Establishment Clause was applied only to the Federal Government, and few cases involving this provision came before the Court. After *Everson* recognized the incorporation of the Clause, however, the Court faced a steady stream of difficult and controversial Establishment Clause issues, ranging from Bible reading and prayer in the public schools, *Engel v. Vitale*, 370 U.S. 421 (1962); *School Dist. of Abington Township v. Schempp*, 374 U.S. 203 (1963), to Sunday closing laws, *McGowan v. Maryland*, 366 U.S. 420 (1961), to state subsidies for church-related schools or the parents of students attending those schools, *Board of Ed. of Central School Dist. No. 1 v. Allen*, 392 U.S. 236 (1968); *Everson*, *supra*. After grappling with such cases for more than 20 years, *Lemon* ambitiously attempted to distill from the Court’s existing case law a test that would bring order and predictability to Establishment Clause decisionmaking. That test, as noted, called on courts to examine the purposes and effects of a challenged government action, as well as any

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entanglement with religion that it might entail. *Lemon*, 403 U. S., at 612–613. The Court later elaborated that the “effect[s]” of a challenged action should be assessed by asking whether a “reasonable observer” would conclude that the action constituted an “endorsement” of religion. *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U. S. 573, 592 (1989); *id.*, at 630 (O’Connor, J., concurring in part and concurring in judgment).

If the *Lemon* Court thought that its test would provide a framework for all future Establishment Clause decisions, its expectation has not been met. In many cases, this Court has either expressly declined to apply the test or has simply ignored it. See *Zobrest v. Catalina Foothills School Dist.*, 509 U. S. 1 (1993); *Board of Ed. of Kiryas Joel Village School Dist. v. Grumet*, 512 U. S. 687 (1994); *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819 (1995); *Capitol Square Review and Advisory Bd. v. Pinette*, 515 U. S. 753 (1995); *Good News Club v. Milford Central School*, 533 U. S. 98 (2001); *Zelman v. Simmons-Harris*, 536 U. S. 639 (2002); *Cutter v. Wilkinson*, 544 U. S. 709 (2005); *Van Orden*, 545 U. S. 677; *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171 (2012); *Town of Greece v. Galloway*, 572 U. S. 565 (2014); *Trump v. Hawaii*, 585 U. S. 667 (2018).

This pattern is a testament to the *Lemon* test’s shortcomings. As Establishment Clause cases involving a great array of laws and practices came to the Court, it became more and more apparent that the *Lemon* test could not resolve them. It could not “explain the Establishment Clause’s tolerance, for example, of the prayers that open legislative meetings . . . ; certain references to, and invocations of, the Deity in the public words of public officials; the public references to God on coins, decrees, and buildings; or the attention paid to the religious objectives of certain holidays, including Thanksgiving.” *Van Orden, supra*, at 699 (opinion

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of BREYER, J.). The test has been harshly criticized by Members of this Court,¹³ lamented by lower court judges,¹⁴ and questioned by a diverse roster of scholars.¹⁵

¹³ See, e. g., *Utah Highway Patrol Assn. v. American Atheists, Inc.*, 565 U. S. 994, 995 (2011) (THOMAS, J., dissenting from denial of certiorari); *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U. S. 573, 655–656 (1989) (Kennedy, J., concurring in judgment in part and dissenting in part); *Lamb’s Chapel v. Center Moriches Union Free School Dist.*, 508 U. S. 384, 398–399 (1993) (Scalia, J., concurring in judgment); *Wallace v. Jaffree*, 472 U. S. 38, 112 (1985) (Rehnquist, J., dissenting).

¹⁴ See, e. g., *Green v. Haskell Cty. Bd. of Comm’rs*, 574 F. 3d 1235, n. 1 (CA10 2009) (Kelly, J., dissenting from denial of rehearing en banc) (discussing the “judicial morass resulting from the Supreme Court’s opinions”); *Cooper v. United States Postal Service*, 577 F. 3d 479, 494 (CA2 2009) (“*Lemon* is difficult to apply and not a particularly useful test”); *Roark v. South Iron R–1 School Dist.*, 573 F. 3d 556, 563 (CA8 2009) (“[T]he *Lemon* test has had a ‘checkered career’”); *Skoros v. New York*, 437 F. 3d 1, 15 (CA2 2006) (government officials “confront a ‘jurisprudence of minutiae’ that leaves them to rely on ‘little more than intuition and a tape measure’ to ensure the constitutionality of public holiday displays” (quoting *County of Allegheny*, *supra*, at 674–675 (opinion of Kennedy, J.))); *Felix v. Bloomfield*, 841 F. 3d 848, 864 (CA10 2016) (court “cannot speculate what precise actions a government must take” to comply with the Establishment Clause); *Separation of Church and State Comm. v. Eugene*, 93 F. 3d 617, 627 (CA9 1996) (O’Scannlain, J., concurring in result) (The standards announced by this Court “are not always clear, consistent or coherent”).

¹⁵ See McConnell, Religious Freedom at a Crossroads, 59 U. Chi. L. Rev. 115, 118–120 (1992) (describing doctrinal “chaos” *Lemon* created, allowing the Court to “reach almost any result in almost any case”); Laycock, Towards a General Theory of the Religion Clauses: The Case of Church Labor Relations and the Right to Church Autonomy, 81 Colum. L. Rev. 1373, 1380–1388 (1981) (criticizing the “unstructured expansiveness of the entanglement notion” and the potential that certain constructions of the effects prong may result in “the establishment clause threaten[ing] to swallow the free exercise clause”); Smith, Symbols, Perceptions, and Doctrinal Illusions: Establishment Neutrality and the “No Endorsement” Test, 86 Mich. L. Rev. 266, 269 (1987) (criticizing both the *Lemon* test and the endorsement gloss); Tushnet, Reflections on the Role of Purpose in the Jurisprudence of the Religion Clauses, 27 Wm. & Mary L. Rev. 997,

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For at least four reasons, the *Lemon* test presents particularly daunting problems in cases, including the one now before us, that involve the use, for ceremonial, celebratory, or commemorative purposes, of words or symbols with religious associations.¹⁶ Together, these considerations counsel against efforts to evaluate such cases under *Lemon* and to-

1004 (1986) (describing cases involving “‘deeply ingrained practices’” as “not readily susceptible to analysis under the ordinary *Lemon* approach”); Choper, *The Endorsement Test: Its Status and Desirability*, 18 J. L. & Politics 499 (2002) (criticizing both *Lemon* and the endorsement gloss); Paulsen, *Religion, Equality, and the Constitution: An Equal Protection Approach to Establishment Clause Adjudication*, 61 Notre Dame L. Rev. 311, 315 (1986) (criticizing the Court’s reading of the Establishment Clause as “producing a schizophrenic pattern of decisions”); Marshall, “We Know It When We See It”: The Supreme Court and Establishment, 59 S. Cal. L. Rev. 495, 526 (1986) (explaining that the purpose prong of *Lemon*, “[t]aken to its logical conclusion, . . . suggests that laws which respect free exercise rights . . . are unconstitutional”).

¹⁶ While we do not attempt to provide an authoritative taxonomy of the dozens of Establishment Clause cases that the Court has decided since *Everson v. Board of Ed. of Ewing*, 330 U. S. 1 (1947), most can be divided into six rough categories: (1) religious references or imagery in public monuments, symbols, mottos, displays, and ceremonies, *e.g.*, *Lynch v. Donnelly*, 465 U. S. 668 (1984); *Van Orden v. Perry*, 545 U. S. 677 (2005); (2) religious accommodations and exemptions from generally applicable laws, *e.g.*, *Cutter v. Wilkinson*, 544 U. S. 709 (2005); *Corporation of Presiding Bishop of Church of Jesus Christ of Latter-day Saints v. Amos*, 483 U. S. 327 (1987); (3) subsidies and tax exemptions, *e.g.*, *Walz v. Tax Comm’n of City of New York*, 397 U. S. 664 (1970); *Zelman v. Simmons-Harris*, 536 U. S. 639 (2002); (4) religious expression in public schools, *e.g.*, *School Dist. of Abington Township v. Schempp*, 374 U. S. 203 (1963); *Lee v. Weisman*, 505 U. S. 577 (1992); (5) regulation of private religious speech, *e.g.*, *Capitol Square Review and Advisory Bd. v. Pinette*, 515 U. S. 753 (1995); and (6) state interference with internal church affairs, *e.g.*, *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171 (2012). A final, miscellaneous category, including cases involving such issues as Sunday closing laws, see *McGowan v. Maryland*, 366 U. S. 420 (1961), and church involvement in governmental decisionmaking, see *Larkin v. Grendel’s Den, Inc.*, 459 U. S. 116 (1982); *Board of Ed. of Kiryas Joel Village School Dist. v. Grumet*, 512 U. S. 687 (1994), might be added. We deal here with an issue that falls into the first category.

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ward application of a presumption of constitutionality for longstanding monuments, symbols, and practices.

B

First, these cases often concern monuments, symbols, or practices that were first established long ago, and in such cases, identifying their original purpose or purposes may be especially difficult. In *Salazar v. Buono*, 559 U.S. 700 (2010), for example, we dealt with a cross that a small group of World War I veterans had put up at a remote spot in the Mojave Desert more than seven decades earlier. The record contained virtually no direct evidence regarding the specific motivations of these men. We knew that they had selected a plain white cross, and there was some evidence that the man who looked after the monument for many years—“a miner who had served as a medic and had thus presumably witnessed the carnage of the war firsthand”—was said not to have been “particularly religious.” *Id.*, at 724 (ALITO, J., concurring in part and concurring in judgment).

Without better evidence about the purpose of the monument, different Justices drew different inferences. The plurality thought that this particular cross was meant “to commemorate American servicemen who had died in World War I” and was not intended “to promote a Christian message.” *Id.*, at 715. The dissent, by contrast, “presume[d]” that the cross’s purpose “was a Christian one, at least in part, for the simple reason that those who erected the cross chose to commemorate American veterans in an explicitly Christian manner.” *Id.*, at 752 (opinion of Stevens, J.). The truth is that 70 years after the fact, there was no way to be certain about the motivations of the men who were responsible for the creation of the monument. And this is often the case with old monuments, symbols, and practices. Yet it would be inappropriate for courts to compel their removal or termination based on supposition.